

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The rate is measured in the marketplace, and reflects several factors: the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case. (*Shaffer v. Superior Court* (1995) 33 Cal.App.4th 993, 1002.)

Defendant's counsel claims an hourly rate of \$1,100 for attorney Ravi Bendapudi, and \$900 for attorney Mansi Gaur.

The court finds the claimed hourly rates are not representative of the rates charged in the local Merced community for the same or similar work. Nor does either counsel present evidence that such rates are reasonable for the local Merced community for the work done. Accordingly, the court finds it reasonable to set the hourly rate at \$400 /hour.

A trial court may not rubberstamp a request for attorney fees and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.)

After a substantial review of the entire record and the papers offered in support and opposition of Plaintiff's motion, the court finds the time billed is excessive and finds it reasonable to reduce the hours billed. The court finds it reasonable to reduce the total attorney time for attorney Bendapudi by 51.4 hours and attorney Gaur by 62 hours. The court found considerable hours of excessive and duplicative work and reduced those hours accordingly. In addition, the court further reduced the hours based on its apportionment of the work done solely for Defendant Gaur.

This results in a lodestar of \$34,170. This represents the reasonable total billed time for attorney Bendapudi of 148.4 hours at \$400 an hour, and for attorney Gaur of 22.45 hours at \$400 an hour, apportioned at 50% for the work done on behalf of Defendant Gaur.

Accordingly, the court awards attorney fees in favor of Defendant Gaur in the amount of \$34,170.

Attorney fees and costs are to be paid within thirty (30) days of this court's order.

26CV-04195 Mariana Benitez Alvarado vs Griselda Ayala-Salazar

Order to Show Cause Re: Restraining Order

Appearance required.
